

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

**CERTAIN PORTABLE POWER STATIONS AND
PACKAGING THEREFOR**

Inv. No. 337-TA-563

**ORDER NO. 4: GRANTING COMPLAINANT'S MOTION FOR AN ORDER TO SHOW
CAUSE REGARDING ENTRY OF DEFAULT AGAINST RESPONDENTS**

(May 24, 2006)

On May 9, 2006, Complainant Roadmaster (USA) Inc. ("Roadmaster") filed a motion [563-01] for an order directing Respondent Sinochem Ningbo LTD ("Sinochem") to show cause why it should not be found in default for failure to respond to the Complaint and Notice of Investigation. Roadmaster's motion requests issuance of an initial determination finding Sinochem in default upon failure of Sinochem to show cause. The motion also requests, upon finding Sinochem in default, immediate entry of a general exclusion order, limited exclusion order, cease and desist order, and/or other appropriate relief. On May 22, 2006, the Commission Investigative Staff ("Staff") filed a response supporting Roadmaster's motion, and took no position with respect to Roadmaster's request for immediate entry of relief upon finding of default by Sinochem. Additionally, Staff reserved the right to take a position as to the sufficiency of any showing that Sinochem may make.

On February 8, 2006, Roadmaster filed a Complaint with the Commission pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337. The Complaint, which was supplemented on February 27, 2006, alleges that Sinochem violated Section 337 in connection with importation into the United States, sale for importation, and sale after importation of certain portable power stations by reason of (1) infringement of U.S. Design Patent No. D469,739; (2) infringement

of U.S. Trademark Registration No. 2,594,538; and (3) infringement of U.S. Copyright Registration No. VA-1-261-495. On March 7, 2006, the Commission issued a Notice of Investigation that was subsequently published in the Federal Register on March 14, 2006.¹

Sinochem is located in the People's Republic of China. The Office of the Secretary served, via certified mail, copies of the Complaint and Notice of Investigation on Sinochem at its address in China and on the Embassy of the People's Republic of China on March 10, 2006. These served copies were not returned to the Secretary as undelivered.² Under the Commission's Rules of Practice and Procedure, Sinochem's response was due on April 10, 2006.³ As of this date, Sinochem has not yet filed a response to the Complaint. In addition, the parties were required to submit a discovery statement by April 17, 2006 according to the procedural schedule outlined in Order No. 2 (issued March 14, 2006). As of this date, the undersigned has not yet received a discovery statement from Sinochem.

Section 337(g), 19 U.S.C. § 1337(g)(1)(C), and Commission Rule 210.16, 19 C.F.R. § 210.16(a)(1), provide that a respondent shall be found in default if it fails to respond or otherwise fails to answer the Complaint and Notice of Investigation, and fails to show cause why it should not be found in default. In view of Sinochem's failure to respond to the Complaint and Notice, failure

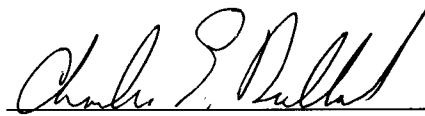
¹ See 71 Fed. Reg. 13,166.

² See Exhibit A of Staff's Response to Complainant's Motion

³ 19 C.F.R. § 210.13(a) provides that a respondent shall have twenty days from the date of service of the Complaint and Notice of Investigation to file a response with the Secretary; and 19 C.F.R. § 201.16(d) provides that ten additional days shall be permitted for service on a party in a foreign country. Because the Complaint and Notice of Investigation was mailed to Sinochem's address in China on March 10, 2006, the deadline for Sinochem to respond was April 10, 2006 pursuant to 19 C.F.R. §§ 210.13(a) and 201.16(d).

to inform the Commission why it did not respond, and failure to submit a discovery statement, Roadmaster's motion [563-01] is granted. Sinochem is hereby ordered, **no later than the close of business on June 13, 2006**, to show cause why it should not be found in default for failing to respond. In the absence of any showing of good cause within said time period, the undersigned will enter an initial determination of default against Sinochem.

SO ORDERED.

A handwritten signature in black ink, appearing to read "Charles E. Bullock", is written over a horizontal line.

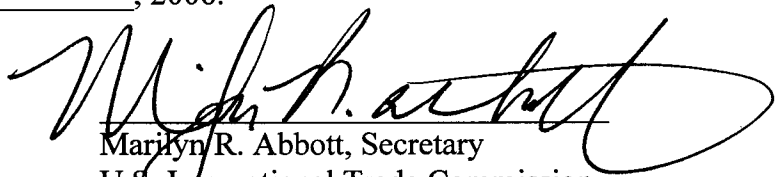
Charles E. Bullock
Administrative Law Judge

**IN THE MATTER OF CERTAIN PORTABLE POWER
STATIONS AND PACKAGING THEREFOR**

337-TA-563

CERTIFICATE OF SERVICE

I, Marilyn R. Abbott, hereby certify that the attached **ORDER** was served upon, **David O. Lloyd, Esq.**, Commission Investigative Attorney, and the following parties via first class mail and air mail where necessary on May 25, 2006.



Marilyn R. Abbott, Secretary
U.S. International Trade Commission
500 E Street, S.W., Room 112A
Washington, DC 20436

FOR COMPLAINANT ROADMASTER (USA) CORP:

James Greenberg, Esq.
Robert F. Zielinski, Esq.
Charles M. Hart, Esq.
WOLF, BLOCK, SCHORR AND SOLIS-COHEN LLP
1650 Arch Street
22nd Floor
Philadelphia, PA 19103

PROPOSED RESPONDENT:

SINOCHEM NINGBO, LTD
21 JianXia Street
Ningbo 315000 China

**IN THE MATTER OF CERTAIN PORTABLE POWER
STATIONS AND PACKAGING THEREFOR**

337-TA-563

PUBLIC MAILING LIST

Sherry Robinson
LEXIS - NEXIS
8891 Gander Creek Drive
Miamisburg, OH 45342

Ronrita Green
West Group
Suite 230
901 Fifteenth Street, N.W.
Washington, DC 20005